

FILED
STATE OF MISSISSIPPI
LAFAYETTE COUNTY
IN THE CHANCERY COURT OF LAFAYETTE COUNTY, MISSISSIPPI

PHYLLIS MARIE CROWDER-KESTER

PETITIONER

V.

CAUSE NO. CV2016-422W

MATTHEW OLIVER REARDON

RESPONDENT

ORDER ON MOTION TO DISMISS

THIS MATTER was set for hearing before this Court by Respondent on June 28, 2022, on Respondent's *Motion to Dismiss* filed on April 11, 2022; and prior to the hearing the Court ordered all parties, witnesses, and spectators to be wanded and searched by deputies for weapons, cameras, and cell phones. Respondent refused to comply with the Court's order to remove his cell phones and recording devices, and refused to appear. Respondent was then arrested for other matters pending in a separate Court. Petitioner filed her *Motion to Dismiss* Respondent's *Motion to Dismiss* on July 22, 2022. Petitioner has not set her *Motion* and Respondent has failed to make a request to reset his *Motion* and the Court therefore finds and orders as follows:

1. The Court has personal jurisdiction over the parties and the subject matter herein, and venue is proper.
2. On July 12, 2021, Respondent, at all times in this matter acting *pro se*, attempted to initiate this action when he filed his *Petition for Citation of Contempt and Modification of Child Support Agreement*.
3. On August 4, 2021, Respondent later amended said *Petition* and filed his amendment.

4. On August 19, 2021, Respondent issued a *Rule 81(d) Summon* to Petitioner; but he never perfected process over her for it as provided by **Rule 81(d)(2) of the Mississippi Rules of Civil Procedure. (Personal service required in contempt actions).**

5. On August 19, 2021, Respondent filed an *Order of Setting* where he set his *Petition for Citation of Contempt and Modification of Child Support Agreement*.

6. On August 10, 2021, Petitioner commenced this action when she filed her *Petition for Modification, Citation for Contempt, and Other Relief*.

7. On August 19, 2021 and again on August 24, 2021, Petitioner issued a *Rule 81(d) Summons* to Respondent; had it executed on September 3, 2021; and later filed on September 9, 2021.

8. On September 9, 2021, Respondent filed his *Answer and Counterclaim to Petition for Modification, Citation for Contempt, and Other Relief*.

9. Respondent *never* served a *Rule 81(d) Summons* on Petitioner for his *Answer and Counterclaim to Petition for Modification, Citation for Contempt, and Other Relief*, where he also asked for contempt sanctions against Petitioner. **(Emphasis added).**

10. On September 14, 2021, a hearing was held in Benton County, Mississippi where Petitioner was represented by counsel and Respondent appeared *pro se*.

11. During the hearing, the Court ordered Respondent to submit to a nail bed drug test; suspended Respondent's visitation; and *continued this matter to January 12, 2022 by Order signed and filed on September 14, 2021. (Emphasis added).*

12. On September 28, 2021, Respondent filed his *Motion for Dismissal, or in the alternative for Recusal (2nd)*. (There was never a *First Motion for Recusal* in the Court file since the initiation of this action on either July 12, August 4, or August 10, 2021).

13. On September 28, 2021, Respondent hand delivered to the Court the original of his *Motion to Dismiss, or in the alternative for Recusal (2nd)*.

14. On September 30, 2021, this Court ruled on Respondent's *Motion to Recuse* and filed its *Order* of the same that day; and later amended the same and filed an *Amended Order* on October 1, 2021.

15. On October 11, 2021, Respondent filed an *Emergency Notice of Appeal and Petition for Writ of Mandamus*.

16. On October 12, 2021, the Chancery Clerk of Lafayette County filed her *Certificate of Service*.

17. On October 12, 2021, the Chancery Clerk of Lafayette County filed her *Certificate of Service with Respondent's Emergency Notice of Appeal and Petition for Writ of Mandamus*.

18. On October 27, 2021, a *letter* from the Clerk of Appellate Courts to the Lafayette County Chancery Clerk and all parties was filed and notified them that Respondent's *appeal* was received and a filing fee of \$200.00 was owed.

19. On October 29, 2021, *Respondent's Pauper's Oath*, as to his *appeal*, was denied by this Court, filed, and mailed to Respondent to his address on his *Notice of Appeal*, emailed to Respondent, and emailed to the Supreme Court of Mississippi.

20. On November 2, 2021, Respondent filed his *Petition for Writ of Prohibition to be Directed to the Trial Judge*.

21. On December 2, 2021, a *letter* from the Clerk of Appellate Courts was filed that notified the Chancery Clerk and all parties of Respondent's deficiency in perfecting his appeal.

22. On December 20, 2021, a *letter* from the Clerk of Appellate Courts was filed that notified the Chancery Clerk and all parties of Respondent's *appeal* being dismissed.

23. On December 27, 2021, a *letter* from the Clerk of Appellate Courts was filed that notified the Chancery Clerk and all parties that the previous *letter* was recalled and allowed Respondent more time to perfect his *appeal*.

24. On January 12, 2022, a *letter* from the Clerk of Appellate Courts was filed that notified the Chancery Clerk and all parties again of Respondent's deficiency in perfecting his *appeal*.

25. On January 12, 2022, a hearing was held from the previous hearing date of September 14, 2021; and for whatever reason, Respondent was not present, and this matter was continued to March 30, 2022 with the prior *Order* of this Court remaining in full force and effect until further *Order* of this Court.

26. On January 14, 2022, Respondent filed his *Response to Order Entered 1/12/2022*, and the Court did not respond or order anything as nothing was required by the rules for it to do so.

27. On March 11, 2022, an *Order* from the Supreme Court of Mississippi was filed holding that the *Emergency Notice of Appeal and Petition for Writ of Mandamus* filed *pro se* by Respondent was denied; and that the *Motion/Affidavit to Proceed in In Forma Pauperis* filed by Respondent was denied.

28. On March 14, 2022, again a *letter* from the Clerk of Appellate Court was filed that notified the Chancery Clerk and all parties of Respondent's deficiency in his *appeal*.

29. On April 1, 2022, a *letter* from the Clerk of Appellate Courts was filed that notified the Chancery Clerk and all parties of Respondent's *appeal* being dismissed.

30. On March 30, 2022, a hearing was held where Respondent was not present; and the Court ordered that the September 14, 2021 *Order* remain in full force and effect until further *Order* of this Court, and said *Order* was filed on April 4, 2022..

30. On April 11, 2022, Respondent filed his *Motion to Dismiss*.

31. On April 21, 2022, a *letter* from the Clerk of Appellate Court was filed notifying the Chancery Clerk and all parties that Respondent's appeal was dismissed.

32. **12(b) of the Mississippi Rules of Civil Procedure states:**

(b) How Presented. Every defense, in law or fact, to a claim for relief in any pleading, whether a claim, counter-claim, responsive pleading thereto if one is required, except that the following defenses may at the option of the pleader be made by motion:

- (1) Lack of jurisdiction over the subject matter,
- (2) Lack of jurisdiction over the person,
- (3) Improper venue,
- (4) Insufficiency of process,
- (5) Insufficiency of service of process,
- (6) Failure to state a claim upon which relief can be granted,
- (7) Failure to join a party under Rule 19.

No defense of objection is waived by being joined with one or more other defenses or objections in a responsive pleading or motion. If a pleading sets forth a claim for relief to which the adverse party is not required to serve a responsive pleading, he may assert at the trial any defense in law or fact to that claim for relief. If, on a motion to dismiss for failure of the pleadings to state a claim upon which relief can be granted, matters outside the pleading are presented to and not excluded by the court, the motion shall be treated as one for summary judgment and disposed of as provided by Rule 56, and all parties shall be given reasonable opportunity to present all material made pertinent to such a motion by Rule 56; however, if on such a motion matters outside the pleadings are not presented, and the motion is granted, leave to amend shall be granted accordance with Rule 15(a).

33. Further, Petitioner asserts that Respondent's *Motion to Dismiss* should be DISMISSED as he refused to be present to argue his own Motion the day he had it set for hearing.

34. As shown below, Respondent cannot establish any of the defenses as set out in ***Rule 12 of the Mississippi Rules of Civil Procedure.***

A. Respondent asserts that this Court lacked jurisdiction over this matter when it continued the matter from September 14, 2021 (when Respondent was present at the hearing) to January 12, 2022 and again to March 30, 2022 (when Respondent was not present). Respondent is correct that this matter was on appeal but this Court did not alter, amend, modify, or address anything that was not brought up on September 14, 2020 prior to the appeal being initiated. This Court only left in place what was previously ordered and stayed the matter until the appeal was over. Petitioner could have gone forward on her contempt matters against Respondent but because he was a “no show” and this matter was on appeal, the Court continued it. This argument is without merit, and the Court has both personal and subject matter jurisdiction in this matter.

B. Respondent asserts that his *Response to Order Entered 1/12/2022* addressed the Court’s lack of jurisdiction. He certainly argued that it did, but did so incorrectly. This argument is without merit and the Court has both personal and subject matter jurisdiction.

C. Respondent asserts that he was improperly noticed of the “rescheduled hearing”. Respondent was properly served with a Rule 81(d) Summons for September 14, 2021. Respondent was present for the hearing on September 14, 2021. The order that was entered on that day continued this matter out to January 12, 2022. The order entered on the January 12, 2022 hearing was continued to March 30, 2022. Respondent was emailed a copy of the continuance order from the Chancery Clerk’s office. Respondent was properly noticed and failed to appear. This argument is without merit, and the Court has both personal and subject matter jurisdiction.

D. Respondent argues that his appeal being dismissed on April 1, 2022 was due to his inability to pay and not on merit, and he continues to argue jurisdiction. Regardless of whether his appeal was dismissed on inability to pay or on merit, it was dismissed, and this Court has jurisdiction. He also argues that this Court should vacate its orders in this matter, however this argument is simply flawed and without merit. The Court will not vacate its orders in this matter.

E. Respondent argues the Clean Hands Doctrine and that Petitioner should be barred from bringing such claims to begin with. This argument is untimely and without merit.

F. Respondent then brings up his commitment that is not any part of this action nor is this Court involved in that matter. This argument is without merit.

G. Respondent argues that he has had joint legal custody of his child, however that changed since the September 14, 2021 hearing where he was ordered to get a nail bed drug test and his visitation suspended. This argument is without merit.

H. Respondent argues that an Order dated August 3, 2016 should be in full force and effect where the parties agreed to joint legal custody. Again, that changed on September 14, 2021. This argument is without merit.

I. Respondent argues Petitioner's change in schools for the minor child and not notifying him of that change in February of 2022 was in violation of his legal rights. Again, their joint legal custody arrangement changed on September 14, 2021. This argument is without merit.

J. Respondent finally argues that Petitioner has taken it on herself to sever visitation between Respondent and the minor child without order of this Court. This may be true, but that

is a claim for him to file and properly serve on Petitioner and bring to this Court's attention.

Respondent has failed to do this. This argument is without merit.

K. Respondent did not address his appeal of this Court's denial of his *Motion to Recuse* and *Pauper's Oath*. The appellate court affirmed both, and those issues are *res judicata*.

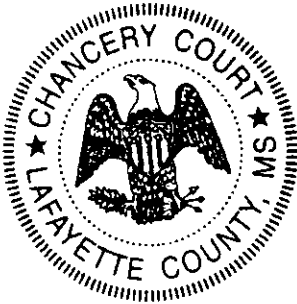
L. Respondent refused to enter the courtroom to argue his own *Motion* and has not attempted to reset it.

IT IS THEREFORE ORDERED, ADJUDGED, and DECREED:

For the above stated reasons, Respondent's *Motion to Dismiss* is not well taken and is therefore DISMISSED. The Lafayette County Chancery Clerk shall make a certified copy of this *Opinion* and *Order*, have a deputy serve it on Respondent wherever he may be located, and note in the Court's docket that the same was executed.

SO ORDERED this the 24th day of August, 2022.

Robert Q. Whitwell
ROBERT Q. WHITWELL, CHANCELLOR



STATE OF MISSISSIPPI
LAFAYETTE COUNTY

I, certify that the above and foregoing is a true and correct copy
of Order on Motion To Dismiss
as the same now appears on file in my office at Oxford, Mississippi.

Given under my hand and seal of office, this 24th day
of August, 2022

SHERRY J. WALL, Chancery Clerk

BY Jina Johnson D.C.

The State of Mississippi
The County of Lafayette
I have this day executed the within instrument personally by delivering to
the within named Matthew Rendon a true copy of this instrument
This the 24th day of Aug
By C. J. [Signature]
Deputy Sheriff

Witnesses:

[Signature] L-28
[Signature] L-31